Montgomery County District Court

Cause No. 2025-CV-0004

Diana Davis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	3-22-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies each allegation and asserts the right to require Plaintiff to prove the charges and allegations by a preponderance of the evidence.

As and for its affirmative defenses, Defendant states the following. First, Plaintiff's alleged injuries were not proximately caused by the collision, because the impact was of low speed and the injuries claimed were pre-existing or unrelated to the event. Second, Plaintiff failed to exercise ordinary care for her own safety, and any recovery must be reduced in proportion to her percentage of responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Third, Plaintiff failed to mitigate her damages by timely following reasonable medical advice and by unreasonably delaying treatment, and any recovery must be reduced accordingly.